

THE CASE OF THE NATTERING NANNY-BOT
S26 CIVPRO – LSM – CONFIDENTIAL

Benoit Blanc, the world’s greatest private investigator, finds himself in yet another web of deceit. This time, however, the mystery involves not a murder, but something even scarier: corporate litigation.

THE PLAYERS:

- **Benoit Blanc:** The aforementioned gentleman detective, domiciled in Louisiana. He operates BLANC INVESTIGATIONS as a sole proprietorship.
- **Vanguard Robotics, Inc.:** A cutting-edge robotics firm incorporated in Delaware with its headquarters and principal place of business in San Monique (a small Caribbean island nation).
- **Lady Vanessa Guerda:** The CEO of Vanguard Robotics.
- **Tex Dallas:** A rival private investigator and “security consultant” domiciled in Texas.

THE SCENE:

In January 2025, a massive hurricane devastated the island nation of San Monique, destroying Vanguard’s headquarters and the island’s power grid. Guerda evacuated to her vacation farmhouse in upstate Montana, which was the only property she owned with reliable high-speed internet.

Because San Monique was not a suitable location during its recovery from which to conduct a multinational robotics firm, Guerda directed all Vanguard operations from her Montana farmhouse for the next 11 months. During this period, she routed all company emails and calls to her Iowa personal line, held monthly Board of Directors meetings via Zoom from her custom-made mahogany kitchen table, and hired a Montana-based accountant to temporarily manage the global payroll.

During this “Montana Interregnum,” as Guerda came to call it, Vanguard launched a new product: The Nanny Bot 3000. One of these robots was sold online to a wealthy family in Houston, Texas. The robot subsequently behaved strangely. Instead of changing diapers, it loudly recited the trade secrets of Vanguard’s competitors.

Suspecting sabotage, Lady Guerda hired Benoit Blanc in June 2025 to investigate the specific Nanny Bot in Texas without raising a stink. Blanc, without leaving his luxurious claw-footed bathtub in Baton Rouge, hacked into the robot’s internal logs remotely. He became convinced that Tex Dallas had physically tampered with the robot to frame Vanguard.

In October 2025, Blanc made an appearance (from his home) on *The Sleuthing Hour*, a radio show produced in Chicago but syndicated nationally, including on two stations in Texas. Blanc told a barely-anonymized version of the story, identifying the perpetrator as “let’s call him... Dex Tallas. I’m sure you know who I mean.” Meanwhile, in November 2025, Guerda published a blog

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post on her universally available website—which installs no cookies and merely displays information—publicizing Blanc’s findings that Tex Dallas was responsible for attempting to frame Vanguard for theft of trade secrets.

By December 2025, the San Monique HQ was rebuilt, and operations returned there, with Guerda returning to the country in early January 2026 (she stayed in Bozeman to vacation for an additional two weeks).

Litigation, as it so often does, ensued, with the following lawsuits being filed in in January 2026.

1. *Tex Dallas v. Vanguard Robotics* (Montana State Court). Tex sued Vanguard Robotics for **breach of contract**. It turns out that Tex and Vanguard have a history – in 2020, he performed some security work for the company in San Monique, for which, he alleges, he was never paid. Vanguard moves to dismiss for lack of jurisdiction.
2. *Tex Dallas v. Benoit Blanc & Vanessa Guerda* (Texas Federal Court). Tex sues Blanc for **defamation** for his comments on *The Sleuthing Hour*. He also sues Guerda for defamation for her blog post. Both defendants separately move to dismiss for lack of jurisdiction.

Dallas, ever cunning, managed to catch Guerda in the Bozeman-Yellowstone International Airport on her way back to San Monique and served her personally with the complaints and summons in both lawsuits.

The Montana long-arm statute allows jurisdiction “to the full scope permitted by the U.S. Constitution.”

The Texas long-arm statute states that “a Court of this State may exercise jurisdiction over a non-resident if that person: (1) transacts any business within the State; or (2) commits a tortious act within this State.”

How should the courts rule on each of the three parties’ pending motions to dismiss?

(instructions on next page)

INSTRUCTIONS:

1. **Word Limit:** 1400 words
2. **You may work alone, with a partner, or in groups of up to four.**
 - a. **Do not discuss the assessment with anyone else** – including Grace, other students, or classmates *outside of* your group (I won't consider group "break ups" to be a violation of this rule).
 - b. You **must list the group members at the bottom of your answer** (does not count against your word count)
 - c. Everyone in the group **must individually turn in an identical copy via Blackboard**
3. At the bottom of your answer, please include the statement: **"I/we did not use an AI/LLM to assist in the preparation of this answer"** and **sign your name(s)**.
 - a. Electronically typing your name will suffice. This also does not count against your word limit.
4. **At the bottom of your answer, please state "[number] words."**
 - a. Use the default word count of your word processing software. This also does not count against your words (You can highlight *just* your substantive answer, and Word will tell you the word count of that selection.)
5. This assessment is due as a .pdf or .docx file **submitted via Blackboard** by 12:59 PM on Thursday 1/22/26.
 - a. **This is a strict deadline. No late assessments will be accepted.** No physical copies will be accepted. If for any reason the Blackboard submission does not work, I will accept alternate submissions via email pursuant to the same deadline.
6. As stated in class, **failure to follow these instructions will result in a deduction from your grade on this assessment.**

E.G. bottom of answer signature block:

1372 words

Group Members: Luke Smith Morgan, Jesse Williams

We did not use an AI/LLM to assist in the preparation of this answer.

/s/ Luke Smith Morgan, Jesse Williams